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#	Case Name	Tentative
1.	2026-1552103 Alvarado vs. Prime Tech Cabinets, Inc.	Demurrer is off calendar pursuant to Request for Dismissal filed as to Causes of Action 7 through 10.
3.	2023-1338703 Biltagi vs. Transamerica Life Insurance Company	The motion by Plaintiffs/Cross-Defendants Bill Biltagi and Tropical Entertainment, Inc. (collectively, "Cross-Defendants") for judgment on the pleadings as to the first, fourth, and fifth causes of action alleged in the cross-complaint filed by Cross-Complainant Rami Fahil ("Fahil") is denied. On July 1, 2026, after hearing oral argument, the hearing on this motion was continued to allow the parties to serve and file an opposition no later than July 20, 2026, and a reply no later than July 22, 2026. (July 1, 2026, Minute Order.) As noted in Cross-Defendant's reply, Fahil did not timely file his opposition. However, based on Fahil's proof of service, Fahil timely served his opposition. Cross-Defendants served and filed a timely substantive reply. The Court exercises its discretion to consider all papers filed in support of and opposition to this motion.

A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (Code Civ. Proc., § 438, subd. (c); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650.) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc., § 438, subd. (d); *Tung v. Chicago Title Co.* (2021) 63 Cal.App.5th 734, 758-759.) Extrinsic matters may not be considered. The pleading under attack must be accepted as true. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.)

Cross-Defendants motion is timely filed. (Code Civ. Proc., § 438, subd. (f)(2).) Cross-Defendants filed their answer on July 15, 2026.

Fourth cause of action for breach of contract and fifth cause of action for breach of the implied covenant of good faith and fair dealing

There is no dispute that the Court sustained Cross-Defendants demurrer to these two causes of action on July 16, 2025 with leave to amend and that Fahil did not file any amended cross-complaint. Accordingly, the motion for judgment on the pleadings is denied as moot.

First cause of action for declaratory relief

Plaintiffs seek judgment on the pleadings as to the first cause of action for declaratory relief on the ground that the cause of action is time barred because they are based on the same alleged conduct and underlying rights as the contract-based causes of action, which the Court already found were time barred. Plaintiffs also contend Fahil did not allege an actual controversy.

Pursuant to CCP section 1060, any person “interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.”

To state a cause of action for declaratory relief, Fahil must allege: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations. (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.)

		Fahil seeks declaratory relief as to whether Fahil is entitled to 50% of any amounts obtained from Transamerica as a result of Plaintiffs' claims in this lawsuit. (Cross-Complaint, ¶ 41.) Fahil alleges a dispute exists in which Plaintiffs contend they are entitled to all or substantially all sums that can be obtained from Transamerica as a result of their claims in this lawsuit. (<i>Id.</i>) As the Court previously found, Fahil alleged sufficient facts to state this cause of action. (Cross-Complaint, ¶¶ 11, 13-22, 24-32, and 40-43, and 14:14-15, Exhibit 1.) To show a cause of action is barred by the applicable statute of limitations, "the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred." (<i>Id.</i>; see, <i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403.) Cross-Defendants have not shown the cause of action is clearly and affirmatively time-barred on its face. Fahil seeks a determination as to whether Fahil is entitled to proceeds if Plaintiffs prevail against Transamerica. (Cross-Complaint, ¶ 41.) Although Fahil alleges the policy was terminated as a result of Biltagi's breach of the agreement to pay the policy premiums, Fahil seeks a determination as to what amount, if any, of what Cross-Defendants recover from Transamerica as a result of this action. (<i>Id.</i>, ¶ 41 and 14:14-15 and 19-20.) Accordingly, Cross-Defendants' motion is denied. Fahil shall give notice.
4.	2023-1370142 Katich vs. Peifer	Defendants Scott Peifer, DDS, Peifer Dental, PC, and Scott Peifer, DDS, PC's motion for summary adjudication is granted in part and denied in part. The motion is granted with respect to the claims for intentional and negligent misrepresentation. The motion is denied with respect to the concealment claims. <u>Procedural Issues</u> The Court overrules Defendants' objection no. 1 to the Wyatt Declaration and objection no. 1 to the Husain Declaration. Plaintiff's expert witnesses are permitted to provide an opinion on the ultimate issue, although they may not invade the province of the jury and testify as to whether Dr. Peifer did, in fact, see the alleged injury in the scans. (See, e.g., <i>People v. Frederick</i> (2006) 142 Cal.App.4th 400, 412.) The Court declines to rule on the remainder of the evidentiary objections, because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) <u>Merits</u>